TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JANUARY 28, 2019
MINUTES

Attachment 1—Staff Report

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Stephen Wood, Stephen Duke, Glyn Cowden.
Absent: Bobby Carrier.
Staff: Michael Robertson, Kent Prause, Julia Copeland, Andrew Lindeman, Lynnette Lynes

Mr. Belton called the meeting to order at 6:02 pm.

A. Approval of Agenda
B. Approval of Minutes

Mr. Wolff moved for approval of the agenda and minutes. Mr. Cowden seconded the motion. All in favor.

C. Public Comment

There being no comments, Mr. Belton continued with the agenda.

D. General Correspondence

1. **Request for one-year extension, Case V-15-17, in accordance with Section 156.049 Vested Rights.**

Mr. Wolff moved for approval of the request for a one year extension. Mr. Belton seconded the motion. All in favor.

E. Administration of Oath

Mr. Belton reviewed the procedures with the public. He administered the oath to those speaking.

F. Business

1. **Request for Rehearing, Case S-11-18, 712 Atlantic Street, TMS# 532-06-00-106, Request for a Special Exception in accordance with the standards of**

§156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.

Mr. Rubin recused himself due to a conflict of interest.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Linda Boals, owner, reviewed the request with the Board. She stated that the parking has been amended to allow for an additional drive and parking pad.

Mr. Belton stated that the evidence that was not able to be presented at the previous meeting needs to be outlined to determine if a rehearing should be approved. Ms. Boals asked that the pictures submitted with the request be provided for the Board. She stated that the driveway would allow room for three large vehicles to park.

- *Mr. Wolff moved for approval of the request for a rehearing based on the facts that information regarding parking was not presented at last hearing. Mr. Cowden seconded the motion. All in favor with Mr. Rubin abstaining.*

2. **Case S-11-18, 712 Atlantic Street, TMS# 532-06-00-106, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.**

Mr. Rubin recused himself due to a conflict of interest.

- Mr. Robertson reviewed the staff report from the previous meeting for the Board (attachment 1).

Ms. Boals reviewed the request with the Board.

There being no comments, Mr. Belton closed the public comment.

Mr. Wolff stated that the Board cannot consider a request based on financial need. He stated that parking was an issue when the request was previously heard. He stated that the applicant has worked to address those concerns.

Mr. Belton asked if the Board has any concerns with the requirements being met.

Mr. Wood asked if the parking would be in the rear yard. Mr. Wolff answered that the driveway has been extended to meet that requirement and there is parking on the other side of the house.

▶ *Mr. Wolff moved for approval of the request for a special exception based on the findings that that the parking standard has been met and all criteria met. Mr. Cowden seconded the motion. All in favor with Mr. Rubin abstaining.*

3. **Case V-1-19, 1720 Bowline Drive,** TMS# 594-05-00-276, Appeal from the strict application of §156.224 (C) to allow the removal of a 30-inch and a 33-inch oak trees.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Mike Smith, owner, reviewed the request with the Board.

Mr. Belton asked if an arborist inspected the trees. Mr. Smith answered in the negative and stated that two tree companies inspected the trees and based on their analysis, they recommended that the trees be removed.

There being no comments, Mr. Belton closed the public comment.

Mr. Wolff suggested that an error occurred when the retaining wall and driveway were allowed to be within the tree protection zone. He suggested that this should be better reviewed in the future.

▶ *Mr. Wolff moved for approval of the request based on the findings that the trees are dead and should be allowed to be removed. Mr. Cowden seconded the motion. All in favor.*

4. **Case V-31-18, Wash Wizard, 2727 Hwy 17N, TMS# 578-00-00-096, Appeal from the strict application of §156.107 and 156.201 to request ex-post facto approval of encroachment of existing building into required buffer.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Kevin Berry, Earthsource Engineering, reviewed the request with the Board.

There being no comment, Mr. Belton closed public comment.

Mr. Belton asked if the building remains the same even with a different owner. Mr. Berry answered in the affirmative. Mr. Belton asked if the design showed that the building met all requirements. Mr. Berry answered in the affirmative and stated that it appears to be an error during construction.

Mr. Rubin asked how far the building encroaches into the buffer. Mr. Berry answered that there is an approximate 4.7 feet encroachment into the buffer, with the building being 1.5 feet into the buffer at the lowest point and 2.4 feet into the buffer at the highest point.

▶ *Mr. Wood moved for approval of the request based on the findings that the applicant has met the conditions for a variance. Mr. Rubin seconded the motion. All in favor.*

5. **Case A-1-19, 401, 402, 403, and 404 Patjens Lane, TMS# 532-01-00-245, Appeal of the Zoning Official's approval of the Earl's Court Parking Plan which was erroneous and contrary to the provisions of Section 156.170-172, 156.310, 156.318, 156.411, 156.004, 156.008, 156.030, 156.100, 156.101; and related provisions. CORRESPONDENCE**

▶ Mr. Ben Traywick, attorney for the appellant reviewed the request and stated that they have agreed with the Town attorney for a continuance. He stated that based on proceedings in Circuit Court regarding vested rights, a continuance is requested.

▶ *Mr. Wolff moved for approval of a continuance consistent with the terms of the consent agreement drafted between the town attorney and the applicant. Mr. Cowden seconded the motion. All in favor.*

6. **Case V-2-19, 735 Attwood Circle, TMS# 559-03-00-122, Appeal from the strict application of §156.303 (C) Lot, yard, height, and coverage requirements to allow maintenance of existing encroachment into rear yard for replacement of existing room.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. James Fisher, owner, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Cowden stated that the back porch has been there almost 38 years.

- *Mr. Cowden moved for approval of the request based on the findings that the applicant has met the hardship and will not be changing the footprint. Mr. Rubin seconded the motion. All in favor.*

7. **Case V-3-19, 1210 Clonmel Place, TMS# 514-12-00-189, Appeal from strict application of §156.225 (C) Provisions for Tree Removal to allow the removal of a 41.5 inch, multi-stem Laurel Oak and a 17" Water Oak.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Michael Cain, Seamon, Whiteside, and Associates, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

- *Mr. Cowden moved for approval of the request based on the findings that the trees are a hazard and should be removed. Mr. Wolff seconded the motion. All in favor.*

8. **Case V-4-19, 815 Lowcountry Blvd., TMS# 514-00-00-102, Appeal from the strict application of §156.201 (I)(3) to maintain existing 50-foot bufferyard for commercially-zoned property, to allow eaves overhang encroachment into required bufferyard, to allow mechanical units to be placed in bufferyard; §156.224 [Tree Replacement Table, , Species Quality Rating IV, Note 2] to remove six trees from required buffyard; and §156.173 (E) to allow 22-foot wide two-way drive aisle.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. J.B. Ryan reviewed the request with the Board. He stated that he has contacted the neighbors and they are in favor of the request.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked if the parking is sufficient. Mr. Robertson answered that the plans submitted appear to meet the parking requirements, but noted that they are not requesting a variance on the parking.

Mr. Rubin asked how far the encroachment would be into the buffer. Mr. Ryan answered that it would be approximately four feet for the HVAC and approximately 18 inches for the eaves.

Mr. Wood stated that he would be comfortable with the condition that the HVAC are screened and the tree mitigation.

- *Mr. Wood moved for approval based on the findings that the conditions have been met with the condition that the HVAC are screened with appropriate height evergreens and that the trees removed are mitigated one to one during post construction. Mr. Wolff seconded the motion. All in favor.*

The Board convened for a short break at 7:21 pm and reconvened at 7:26 pm.

9. **Case V-5-19, 1304 Cadet Court, TMS# 558-16-00-189,** Appeal from the strict application of §156.224 to allow removal of protected tree to prevent flooding in home.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Louise Harding, owner, reviewed the request with Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked if the water could be directed to the rear yard. Ms. Harding answered that they have graded the backyard because of flooding, so if more water was directed to the rear, it would cause more issues. She stated that they receive water from the neighbor's property.

- *Mr. Wolff moved for approval of the request based on the findings that the applicant has met the criteria and there is no other reasonable alternative to resolve the issue. Mr. Wood seconded the motion. All in favor.*

10. Case V-6-19, 422 Shannon Drive, TMS# 517-03-00-046, Appeal from the strict application of §156.224 to allow encroachment or removal of protected tree to allow construction of single-family residence.

Mr. Belton recused himself due to a conflict of interest. Mr. Belton turned the meeting over to Mr. Wolff, vice-chair, to run the meeting.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Brian Maiden, owner, reviewed the request with the Board. He stated that he has an arborist report and advertised the request on social media with no opposition posted.

There being no comments, Mr. Wolff closed public comment.

Mr. Cowden asked about the addition and why it is not oriented to come straight off the back of the house. Mr. Maiden answered that they are utilizing the existing gable roof line. He stated that another factor is that there is a historic tree on the neighbor's property and that tree protection zone would be encroached.

Mr. Rubin asked if the tree is being requested to be removed. Mr. Maiden answered that he would like the tree to remain, but be able to encroach into the tree protection zone.

Mr. Wolff suggested that the additional tree should be included on the plan in order to have a full picture of the site. Mr. Maiden answered that they are not requesting encroachment into that protection zone.

Mr. Wood asked about the Town arborist letter and if there would be significant damage to the tree if the encroachment is allowed. Mr. Robertson answered in the affirmative.

Mr. Cowden asked if the root system would be protected as much as possible and that there would only be a minimal encroachment into the perimeter of tree protection zone. Mr. Maiden answered in the affirmative. Mr. Cowden asked if the foundation would be conducive to a viable root system and the tree would be protected. Mr. Maiden answered in the affirmative and stated that he would consult a licensed arborist for treatment and the foundation would be designed to help preserve the tree.

Mr. Wood suggested that the request would not unreasonably restrict the utilization of the property. Mr. Maiden answered that this lot has a significant number of historic trees that hinders construction on the property. He stated that the condition of the lot limits the ability to have a home similar in size to other homes in the neighborhood. Mr. Wood stated that the criteria points to the property being restricted from utilization and asked if there is a current home on the property. Mr. Maiden answered in the affirmative and stated that because of the size of his family they need the addition.

Mr. Cowden read a portion of Mr. Bernard's email for the Board. He suggested that the letter indicates that there are opportunities for additions without impact to protected trees. He suggested that although the addition would encroach into the protection zone, it would be on the perimeter of the tree protection zone. He stated that the applicant has indicated that the foundation would be designed so that it did not damage the root system and therefore, could be accomplished.

Mr. Wood disagreed and suggested that Mr. Bernard's letter indicates that there are opportunities for expansion of the home that would not impact the protected tree.

Mr. Wolff suggested that a deferral might be appropriate in order for the applicant to consider other alternatives and to include the information on the neighboring tree.

Mr. Maiden suggested that this addition would be in keeping with the neighborhood as well as is sensitive to the existing house.

▶ *Mr. Cowden moved for approval of the request based on the findings that the tree would be preserved and the addition would not impact the root system. Motion failed due to the lack of a second.*

▶ *Mr. Wood moved for denial based on the findings that the criteria has not been met and including the town arborist opinion regarding the state of the tree should construction occur within the tree protection zone. Mr. Duke seconded the motion. Motion passed on a 4 to 1 vote with Mr. Wolff, Mr. Rubin, Mr. Duke, and Mr. Wood in favor; Mr. Cowden opposed, and Mr. Belton abstaining.*

11. Case S-1-19, 204 Spooner Lane, TMS# 532-01-00-309, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), §156.318 (D)(5), and §156.411 (A)(3) to allow a Bed and Breakfast.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Kenny Craft, owner, reviewed the request with the Board.

Mr. Robertson asked for clarification on the parking. Mr. Craft answered that the parking would be under the carport. He noted that there is additional next to the carport and down the street.

Mr. Belton administered the oath to Ms. Cynthia Walker.

Ms. Cynthia Walker, 406 Rose Wilder Lane, expressed concern with the parking and that because of the number of cars the owner has, there would not be sufficient parking for the renters. Ms. Walker suggested that the additional parking is included as parking for the proposed inn. She suggested that the neighbors rent their homes as a short-term rental as well. She expressed concern that this request would increase congestion.

▶ *Mr. Wolff moved for denial of the request based on the findings that the applicant cannot meet the standards of the ordinance. Mr. Rubin seconded the motion. All in favor.*

G. Approval of Final Orders

The board approved final orders.

H. Re-adoption of Bylaws

Mr. Wolff moved for approval of the bylaws. Mr. Wood seconded the motion. All in favor.

I. Election of Officers

The Board voted by secret ballot for Mr. Belton to serve as chair and Mr. Wolff to serve as vice-chair.

There being no further business, the meeting adjourned at 8:18 pm.

Submitted by,
L. Lynes
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